Certificate in Local Government Studies
(Accredited by NUI)

LESSON 7
Housing and Building

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LEARNING OBJECTIVES:

When you have studied this lesson, you should be able to:

- Understand the core features of government policy in relation to housing and the performance of the state and local authorities in providing housing
- describe the main powers and functions of local authorities in meeting housing needs
- outline the main features of the legislative framework underpinning the functions of housing authorities
- identify and describe the range of schemes and options available to meet housing needs
- appreciate some of the main challenges facing housing services

7.1 INTRODUCTION

Housing is one of the most important social functions undertaken by local authorities. Shelter is a basic human need (but there is no legal right to it), and the local authority plays a major role in meeting this need by direct provision of housing, by assisting persons to meet their own housing needs and by working with Approved Housing Bodies and the private sector, with the overall objective of the provision of housing. For many decades after the foundation of the State in 1922, the emphasis under this programme was on *building*. In more recent years this emphasis has now shifted to *meeting housing needs and sustaining communities.*

Local authorities have and continue to play a very important role in alleviating the deficit in the provision of affordable accommodation through various mechanisms, including:

- support of Approved Housing Bodies
- the provision of private housing sites
- loans and grants to purchase/improve dwellings
- land-acquisition programmes for public/private housing
- the opening up of zoned land – 'serviced-land' initiatives, local infrastructure housing activation fund
- zoning additional housing land – in development plans
- housing strategies
- Housing Assistance Payments, Rental Accommodation Scheme,
- Inspections for housing standards
- Part V
- Tenant Purchase Schemes

- Leasing scheme
- Mortgage to rent.

There is a wide variety of measures that can be taken. In the context of housing provision it is important to align the different initiatives listed above and, where possible, work in co-operation with the private and voluntary sectors to increase housing supply. Bringing supply and demand into equilibrium and ensuring that provision is made for those unable to purchase/construct their own dwellings are central components of Government policy. Given the policy approach in recent years of reduced direct social housing supply, there has been greater reliance, indeed dependence, on the private housing market for social housing options and solutions, e.g. HAP.

You should approach your study of this lesson bearing in mind the essential links between housing and planning, employment opportunities, economic development, recreation and amenity facilities, social inclusion and quality-of-life issues. Apart from the intrinsic importance of housing for social and economic wellbeing, the availability of good quality affordable housing represents an important political goal. In recent years, as the population of Ireland has increased to well over 5 million people, and as the economy and workforce has grown, the topics of housing supply and affordability are subject to wide discourse and analysis. The provision, allocation and management of social housing figure prominently in the daily work of elected representatives and council officials. At national level in recent years, the shortage of supply, overly high rental charges, the price of new and second-hand houses and uncertainty in the planning process have elevated public and political awareness to a very high level.

7.2 THE MAIN AGENCIES

Central Level

7.2.1 Department of Housing

This is the Irish Government department responsible for housing, planning and local government and supporting the delivery of housing, as well as having policy responsibility for planning and for local government itself. The department has changed its name many times over the years, so to avoid confusion the shorthand version of 'Department of Housing' will be used.

This department formulates, implements and funds housing policies and has national political and executive responsibility for delivery. The approach to social housing in Ireland is based on Exchequer funding for the construction, renovation and regeneration of social housing, which in the past was predominantly located in mono-tenure estates, sometimes of very large sizes. These estates tend to be very visible in villages, towns and cities. With a national average weekly rent of circa €60 in 2022, rents are effectively *heavily subsidised*, well

below private market rents and linked to income and ability to pay. Because of the very low level of rent charged to council housing tenants and the disconnect between the rents charged and the actual costs of running the housing service, local authorities have been generally under-resourced in terms of housing maintenance in the past, though this is now beginning to improve.

The main criticisms of social housing policy have focussed on:

- The inability of the housing 'system' to meet demand for housing, both social and private.
- The poor quality of housing and linked services for those living in social housing-leading to the need for regeneration programmes for some larger estates.
- The failure to provide adequately for special needs groups such as homeless, Travellers.

The response of governments to these criticisms is the promise of additional funding and increased output. New schemes and subsidies are introduced in the hope to stimulate output, make housing more affordable, through government policy frameworks on housing such as *Housing for All* published in 2021. Prior to this, the main policy framework was known as *Rebuilding Ireland* published in 2016. The broad direction of public policy rarely departs far from this central narrative. Public expenditure on housing impacts on the national economy. Capital funding is borrowed by the State, has to be repaid and forms part of national debt, which in 2022 stood at €250bn. The Housing Assistance Payment scheme, with some 61,000 tenancies, cost close to €700m to operate in 2022, and this is funded from the State's revenue account. This is an average of €11,500 per annum support per household for which the State acquires no asset.

The basic housing policy of government was expressed as long ago as 1975 as being "to ensure that, as far as the resources of the economy permit, every family can obtain a dwelling of good standard located in an acceptable environment, at a price or rent they can afford" (Department of Local Government, *Current trends and policies in the field of housing, building and planning*, 1975, p. 4). This basic policy objective in housing could arguably be said to still apply today. This policy was not to be seen in any way as undermining the primary role of the private market. In fact, many of the state's programmes have actively supported high levels of home ownership, to such an extent that this is now a deeply embedded wish of most Irish persons and influences government policy through the political process.

While the Department of Housing has overall responsibility, it is important to note that housing outcomes are impacted by:

- actions taken by public bodies who control planning (local authorities, An Coimisiún Pleanála) and land management (Land Development Agency)
- the legal system, notably High Court judicial reviews

- fiscal measures, especially those governing the taxation of property (capital gains tax, vacant site levy, proposed vacant homes tax, development levies)
- the development of public infrastructure (roads, water services - now entirely with Irish Water / Uisce Éireann)
- the direct provision of housing
- the indirect subsidisation of social and affordable housing
- lending for construction purposes
- lending for mortgages
- the unexpected arrival of refugees or displaced persons
- economic development, interest rates and the cost of borrowing, competition in banking

All these factors bear on housing, which means that it is a complex and highly interlinked series of markets, some aspects which are national and some are also purely local.

7.2.2 Housing Agency

The Housing Agency is a public body established by government in 2012 to support local authorities and Approved Housing Bodies (AHBs) in the delivery of housing and housing services. The Housing Agency has as an overarching objective to ensure that the supply of housing aligns with current and future demand. It advises on housing policy but also supports the implementation of housing policy, for example in areas such as procurement and acquisitions, and the use of vacant homes.

7.2.3 Land Development Agency (LDA)

The LDA is a commercial state agency established in 2018 to coordinate the use of land owned by state bodies (including local authorities), with a focus on the provision of housing. The National Planning Framework-Project Ireland 2040 (NPF) is a spatial expression of government policy with a special focus on towns and cities. Specifically, the NPF is to enable people to live closer to where they work, moving away from the current unsustainable trends of increased commuting and to secure more compact forms of urban development in all types of settlements. The function of the LDA is to work with local authorities so that the ambition of the NPF is realised.

7.2.4 Approved Housing Bodies Regulatory Authority (AHBRA)

The AHBRA was established in 2021 to provide oversight over Approved Housing Bodies (AHBs), voluntary housing associations and housing cooperatives in terms of their governance, financial management and performance. The authority maintains a register of AHBs, monitors data submitted by AHBs, and issues standards and guidance on governance, financial management and reporting, as well as property and asset management and tenancy management for AHBs.

7.2.5 Irish Council for Social Housing

The Irish Council for Social Housing (ICSH) was established in 1982 and is the national social housing federation representing the interests of approved housing bodies and non-profit / voluntary housing associations.

Local Level

7.2.6 Local Authorities

Local authorities are direct providers of social housing as well as providing a range of supports (including loans and grants) and access to HAP. Services also include:

- estate management
- liaison with tenants and tenant associations
- housing maintenance and repairs to dwellings
- rent assessment and collection management
- homelessness
- energy upgrades to rented stock
- planned maintenance
- regeneration schemes
- provision of housing loans
- tenant purchase schemes
- affordable housing
- processing of HAP approvals
- Traveller accommodation

Provision of Local Authority Accommodation

Local authorities are the largest landlords in the State, with roughly 150,000 homes. Applicants for social housing are initially assessed to determine eligibility based on criteria, including household income; suitability of the applicant's current housing arrangements in terms of quality, condition, extent of overcrowding, availability of alternative accommodation; or the special needs of particular household members, such as those with disability or health issues.

For many years local authorities had an excellent record of building large numbers of houses in response to high demand. This was especially so during the 1960s-1980s period. Prior to the passing of the seminal 1966 Housing Act, local authorities relied on the Housing of the Working Classes Acts, which had been enacted to address the dreadful squalor and slums so prevalent in the 19th century. Ireland had a housing crisis in the 19th century. Much of the underlying reasons for the housing crisis stemmed from the laissez- faire attitudes that were dominant during that time. Put simply, those in power did not see it to be their responsibility

to engage actively in housing provision, and in many cases were the beneficiaries of the hardship of their fellow citizens. Some municipal councillors at that time possessed property in the worst slums in their jurisdictions.

The Housing of the Working Classes Act 1900 gave local authorities the legal power to buy land through compulsory purchase and to construct tenements and housing estates. Thus local authorities were empowered to undertake the erection of dwellings or the improvement or reconstruction of existing dwellings. It was on this basis that the role of local authorities in social housing programmes and the provision of social housing began to expand (see next section below).

7.2.7 Approved Housing Bodies (AHBs)

There is also a long tradition in Ireland of social housing being provided by bodies other than local authorities. In the 19th century most social rented dwellings were provided by a range of non-statutory agencies. These included philanthropic bodies such as the Guinness Trust (now called the Iveagh Trust), which was founded in 1890.

In 2024 there were some 450 AHBs all over Ireland and registered with the Approved Housing Bodies Regulatory Authority (AHBRA). Approved Housing Bodies (AHBs) are organisations that operate on a not-for-profit basis, and provide rented housing for people who cannot afford to pay rents in the private rented sector or buy their own homes. Some AHBs provide housing for specific groups in society, such as older people, people with disabilities or homeless people. Some also offer additional non-housing services, such as advisory services to tenants (for example on welfare), social activities, and meals. AHBs are sometimes referred to as housing associations or voluntary housing associations.

Housing co-operatives are usually also included under the category of AHB. Housing co-operatives are housing providers that are controlled by their tenants. The tenants or members share responsibility for the management and upkeep of their homes.

AHBs are known as 'approved housing bodies' because they are approved under the Housing (Miscellaneous Provisions) Act 1992. This status means that they can avail of assistance from local authorities to provide housing, either through direct build, through acquisition, or through leasing private housing.

7.3 THE ORIGINS AND DEVELOPMENT OF MODERN SOCIAL HOUSING IN IRELAND: A SHORT HISTORY

7.3.1 Development of Social Housing Programmes

There were arguably two critical developments in the history of Irish social housing which influenced developments in subsequent years:

1. The independence of the State, which allowed for an accelerated movement away from the social housing policies of the United Kingdom.
2. The Housing Act 1966, which provided at that time the main framework legislation for social housing.

Irish housing policy has deep-seated and enduring characteristics reflecting the traditional absence of strong ideological differences between political parties on housing matters. In the early years, following the foundation of the State, housing policy was focused on the need to increase supply. The focus for many decades was on government-provided housing (with reduced rents) rather than government-sponsored housing (such as HAP and RAS) more recently. This is a salient difference in contrast with many EU states.

In 1876, the Dublin Artisans Dwelling Company was established with support from major companies such as Guinness. This company built houses for industrial workers in areas such as Rialto and laid the ground for later developments by local authorities. The Guinness Trust was subsequently established in 1890 and had a strong welfare orientation including in the provision of housing.

The slow urban population growth, mass emigration and limited building led to widespread blighting of properties in city areas. Dublin Corporation (as Dublin City Council was then known) declared its first slum clearance in 1877. Many tenements were created from the abandoned Georgian houses that had been vacated by the Anglo-Irish ascendancy. Anne Power in her book *Hovels to High Rise* (1993) details how by the end of the 19th century, conditions in the tenements, where over half of Dublin's entire population lived, were dire. Most tenement dwellers had only one room, and at the turn of the 20th century, Dublin's death-rate was still extraordinarily high even by the standards of the time. There was a series of dramatic tenement collapses causing fatalities. Housing standards in rural areas were also very bad with very small houses, large families in overcrowded circumstances, unsanitary conditions and poor structural buildings.

From early on Dublin Corporation supplied mainly single-storey cottages as replacement dwellings at increasing distance from the city centre. Most tenants at the time preferred to be in inner-city locations close to workplaces and areas of origin. When the 1908 Clancy Act was passed—Housing of the Working Classes (Ireland) Act—Dublin Corporation was largely building new housing estates on the then outskirts of the city, with limited

transport links, and largely without amenities or open spaces, with a very unified appearance. The Act meant that local authorities would be for the most part become the main builders of rented social housing.

At the time of the establishment of the Free State in 1922, Ireland had very little industrial development, farming was largely subsistence and small in scale, cities had very slow population growth. The country was recovering from the War of Independence and a subsequent civil war. Thus, new housing supply was slow following independence.

However, the 1920s and particularly from the 1930s onwards did see a marked increase in social housing supply by local authorities. This period also saw the expansion of suburban and rural owner-occupation. That said, while there was an increase in supply, housing conditions generally were often extremely poor. In 1946, only one in six dwellings had all the basic amenities. Emigration increased in the 1950s; there was a net loss of some 80,000 people. The 1950s and 1960s saw an increase in public housing rental from local authorities, a reduction in private renting, and an increase in owner occupation.

The Housing Act 1966 consolidated earlier legislation on housing and proved to be the basis for a further increase in social housing supply right through into the 1980s.

The Housing Act 1966 was a seminal piece of legislation. It had three main policies:

1. It re-affirmed the role of local authorities in providing and managing housing. Local authorities became responsible for assessing housing need. Public housing would be 100 per cent funded by central government grants.
2. The Act established a system of financial assistance to individuals through loans, grants and subsidies which had the effect of increasing owner-occupation and progressing the almost total replacement of the rural stock.
3. Financial assistance was provided to sitting tenants in local authority stock to purchase their dwellings – tenant purchase schemes were introduced.

Power (1993) records that owner-occupation, which was already very high by international standards, rose from 62 per cent to 71 per cent, in the ten years following the Act. Local authority construction also increased rapidly. The National Building Agency was created in 1963 and one of its first tasks was the construction of Ireland's only large, high-rise estate in Ballymun. It had twenty-three high-rise blocks comprising 3,000 units. While the standard of the housing in the estate was initially good, over time the area became subject to severe social problems, and was ultimately demolished, with the last block demolished in September 2015. Ballymun encapsulated a number of the deficiencies inherent in social housing policy: it was mono-tenure (no private housing and tenants could not purchase their flats); little or no amenities were provided; there were maintenance issues with lifts and heating problems; and social problems with easy access to drugs and so on.

What happened in Ballymun could be seen as a reflection of the weakness in traditional approaches adopted by local authorities across the country. Post the 1966 Act, local authorities became big builders and certainly began to meet housing need, producing over 20,000 units a year up to 1980. Towns and cities across Ireland still bear witness to this surge in new supply in the 1970s and 1980s. But local authorities did not develop an adequate approach to estate management to accompany the increase in supply. Repairs to houses were minimal, tenant involvement was almost non-existent, there was no presence of estate-based services and residents were expected to solve their own problems. This was reinforced by the growth in tenant purchase schemes, as more and more tenants were employed as the economy improved.

One final reflection on social housing developments in the 1980s is in relation to the £5,000 'Surrender Grant' introduced in 1984. It was aimed at sitting tenants and was an inducement to vacate their local authority houses and move to the private sector, thus freeing up much needed housing stock for households on the waiting lists. Its impact was almost entirely negative and left local authorities with large numbers of vacant and almost unlettable properties in less desirable estates. Existing tenant purchasers were stuck. It accelerated the decline in the reputation and residualisation of social housing. Some 9,000 units were surrendered and roughly one in twelve of all local authority tenants nationally, but particularly concentrated in certain areas of Cork, Limerick and Dublin cities, left local authority housing as a result. Ultimately this failed policy contributed to the need for regeneration in many estates across the country (initially the Remedial Works Scheme in 1985) in Sligo, Cork, Limerick, Waterford and Dublin.

7.3.2 The Private Rented Sector and the Role of Rent Supplement, HAP and RAS

Housing supports (rather than direct housing provision) has long been seen as a solution to housing need – this initially arose in the form of the rent supplement scheme, which allowed people who would qualify for social housing to live in *private rented* housing. Rent supplement (RS) was an income support to enable an unemployed person to access private rented housing. It was originally introduced in the 1970s but the numbers availing of the scheme were modest at that time. However, as social housing supply started to decline from the late 1980s onwards, the numbers increased in the 1990s and into the 2000s.

The Rental Accommodation Scheme (RAS), introduced in 2004, also reflected the increased role of the private rented sector in fulfilling housing need. While Rent Supplement was based on a rent contribution paid by the Department of Social Protection to the tenant, RAS was administered by local authorities. One of aims of RAS was to facilitate a more mixed housing tenure in estates. Hayden and Jordan (2018, p. 16) report that "there is evidence that the RAS scheme has been successful in securing better quality, more secure tenancies for recipients, and while not directly confirmed by any independent review, there is anecdotal evidence that it has widened choice for those who receive the benefit. As such, it is likely that the scheme has broadened the geographic spread of low income households" (Hayden and Jordan (2018) *Rebuilding the Irish Neighbourhood*, Dublin: Housing Agency).

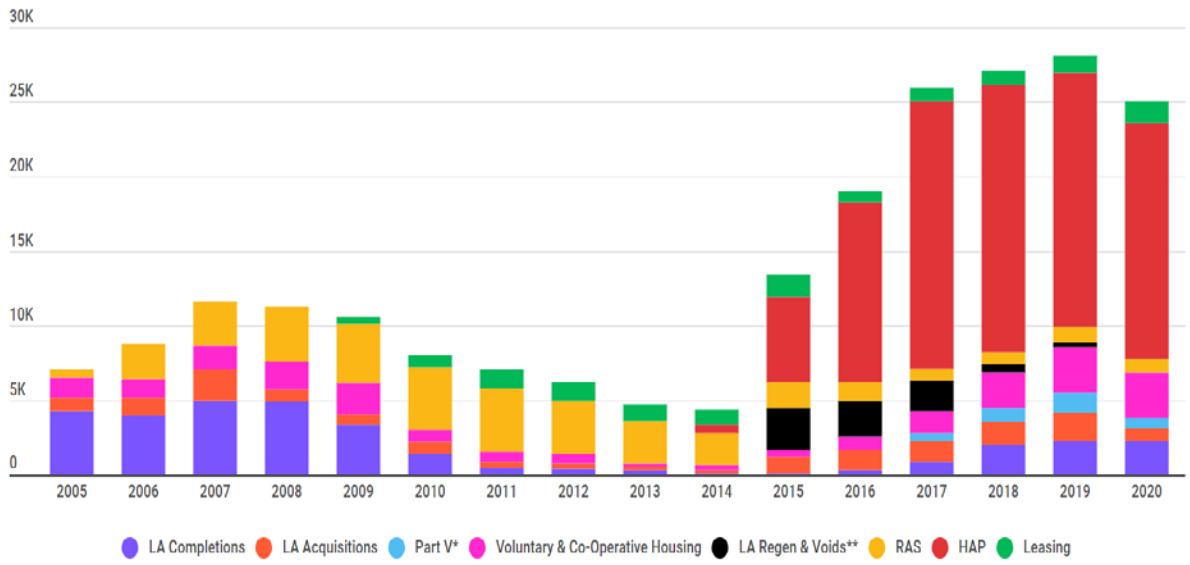
Since 2014, the Housing Assistance Payment (HAP) scheme became another means of sourcing private rented housing as a means of delivering social housing. Under HAP, the tenant is responsible for sourcing their own housing, and the local authority pays rent directly to the landlord. Thus recent years have seen a decline in housing construction by local authorities and an increased dependency on supply by the private rented sector. Further details on both RAS and HAP are provided below

7.4 HOUSING SUPPLY

7.4.1 Public and Private Rented Sector

Social housing is a vital part of the housing market and is directed to those households who are unable to provide accommodation from their own resources. Since the 2010s, different policy frameworks have set targets for the delivery of housing, including social housing units, to be achieved through various social housing programmes, supports and initiatives.

Fig 7.1 Social Housing Delivery (2005-2020)



Source: Department of Housing

The above table shows the delivery of social housing in the 15 years to 2020. There are a number of points to note:

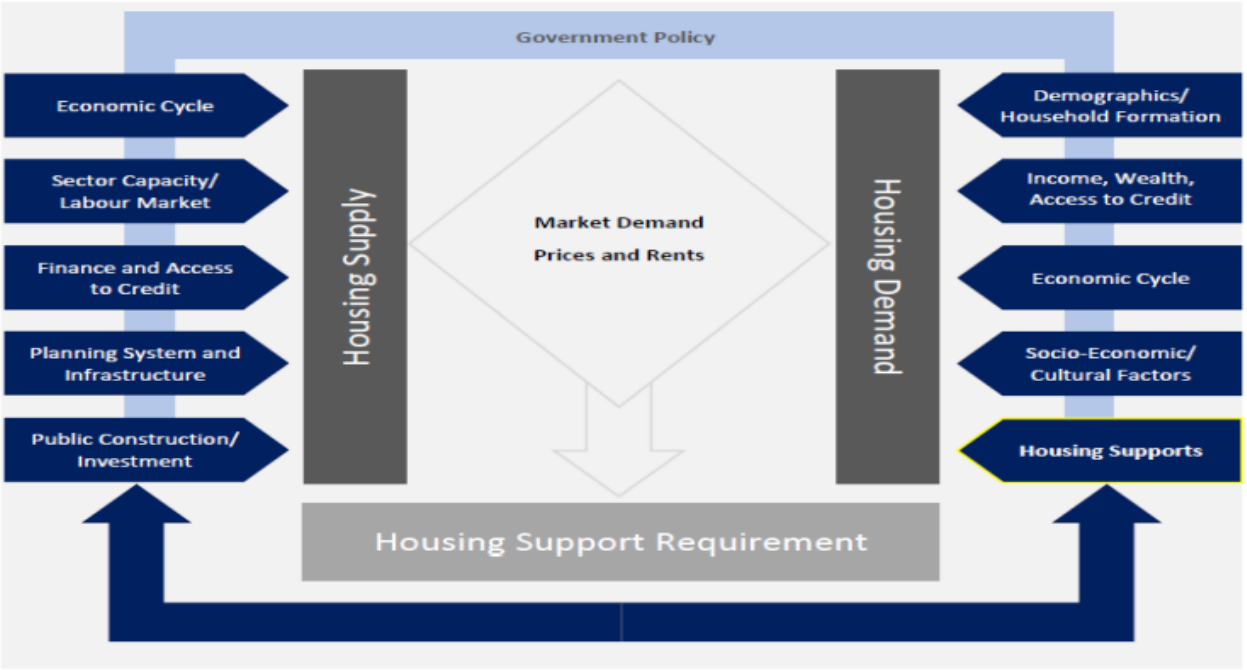
- The high variability in supply. It would be a far better outcome for housing policy if supply was smoother and varied in response to demand.

- The very low level of construction delivery (direct public delivery by local authorities). This has not recovered to earlier levels. For many, securing a local authority house is a pathway to home ownership, via tenant purchase.
- The very high dependence on RAS and HAP (private sector delivery, not necessarily new housing).
- The capacity of the Irish State to provide social housing is now highly contingent on market conditions and is exposed to wider developments which influence supply, such as declines in output following the financial crash after 2008 and the Covid-19 pandemic in 2020
- In an inflationary housing cycle that capacity is undermined greatly, simply because costs increase and most costs accrue to the Exchequer
- A notable feature of the private rented sector is that many landlords own a small number of properties and, in some cases, landlords are now selling their properties and exiting the market, thus compounding the supply shortage.

7.4.2 Factors Driving Housing Supply and Demand

There are many 'moving parts' that operate in the housing market, some of which are within the influence of policy-makers and some of which are not (e.g. interest rates). The figure below highlights some of the various factors that drive both housing supply and demand. From a quick review, it will be apparent that there are numerous components and economic strands that impact on the ability of the State to manage the housing market.

Fig 7.2 Factors Driving Supply and Demand in Housing



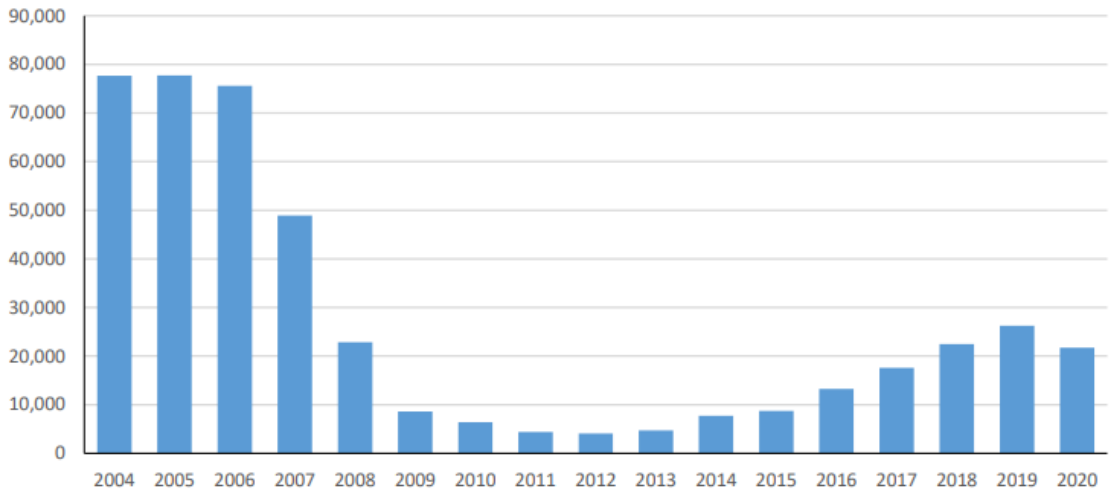
Source: Department of Public Expenditure and Reform, Spending Review 2021 – An Overview of Irish Housing Market and Policy, 2021

ESRI projections suggest that annual housing demand arising from population growth and migration could be up to 33,000 units per year in the period between 2016 and 2040 in a scenario of high migration (Bergin and García-Rodríguez (2020) *Regional Demographics and Structural Housing Demand at a County Level*, ESRI Research Series no. 111, Dublin: ESRI). Indeed since this study was undertaken, many thousands of Ukrainian displaced persons have arrived into Ireland as a result of conflict. It is not known how many of these persons will remain here and for how long. In time this may generate added pressure on the housing/ accommodation system and response by the State.

7.4.3 Trends in New Housing Supply

The chart below shows the annual level of residential unit commencement (not completion) from 2004 to 2020. This shows the dramatic decline in supply from 2006 onwards, particularly as a result of the financial crisis that commenced in 2007-08, and with another decline during the Covid-19 pandemic. Nevertheless, supply has been steadily rising in recent years, as the construction sector responded to increasing prices and as increased public capital expenditure on housing became available. Given the dependence that the State has on delivery of social housing from the private market, this high level of variability in supply mitigates against the ability of the State and the market to meet needs. However, sufficient supply of housing is based on viable development projects. It also depends on a market – that is that there are a sufficient number of potential renters or buyers who can afford to avail of new housing when it becomes available. If housing becomes unaffordable to an ever wider group within society (sometimes referred to as an affordability gap) this in turn is likely to hinder supply. Again, the huge variability of supply is most worthy of note.

Fig 7.3 Housing Supply Trends



Source: Department of Public Expenditure and Reform, Spending Review 2021 – An Overview of Irish Housing Market and Policy, 2021

7.4.4 Exchequer Funding for Housing

Local authorities and AHBs construct, acquire and lease dwellings in order to provide social housing. Funding for this purpose comes from a range of sources. These include:

- Social Housing Investment Programme (SHIP)
- Capital Advanced Leasing Scheme (CALF)
- Capital Assistance Schemes (CAS)
- Social Housing Current Expenditure Programme (SHCEP)
- Capital Loan and Subsidy Scheme (CLSS)

The schemes that are funded under these programmes are summarised in the table below.

Table 7.1 Exchequer Funding Programmes

	LA			AHB				
Type of Delivery	**Build**	**Lease**	**Acquisition**	**Build**		**Lease**	**Acquisition**	
Funding Programme	**SHIP**	**SHCEP**	**SHIP**	**CALF**	**CAS**	**SHCEP**	**CALF**	**CAS**

Source: Department of Public Expenditure and Reform, Spending Review 2021 – An Overview of Irish Housing Market and Policy, 2021

The Department of Public Expenditure and Reform reported in 2021 that some 90% of housing related expenditure related to the following policies:

- "The Housing Assistance Payment: €464.6m (40% annual average increase since 2017). [This cost to the State has risen sharply since 2020.]
- The Rental Accommodation Scheme: €132.9m (stable trend since 2014).
- Local Authority Housing Capital: €890.5m (47% annual average increase since 2014).
- Approved Housing Body (CALF, CAS): €249.5 (34% annual average increase since 2014).
- Social Housing Current Expenditure Programme: €197.3m (34% annual average increase since 2014).
- Capital Loan Subsidy Scheme: €53m (3% annual average increase since 2014).
- Homeless Accommodation: €270.9m (26% annual average increase since 2014)" (Breen and Reidy (2021) *Spending Review 2021 – An Overview of the Irish Housing Market and Policy*, Dublin: Department of Public Expenditure and Reform, p. 13).

Housing expenditure has been increasing considerably since 2014, both in terms of current and capital expenditure. The Department of Public Expenditure and Reform (2021, p. 52) offered the following reflections on the level of supply that might be required into the future: "Housing for All is aiming at 33,000 new dwellings per annum. There are various opinions on

the exact level of supply that will be needed to meet demand in the coming years. Depending on the scenarios and assumptions used to estimate demand, estimates of annual housing demand can range from below 30,000 to 50,000. There are also questions as to the amount of supply that spending alone can provide. If … the costs associated with construction continue to rise, the spending needed to attain the target level of social and affordable housing may become increasingly unsustainable" (Breen and Reidy (2021) *Spending Review 2021 – An Overview of the Irish Housing Market and Policy*, Dublin: Department of Public Expenditure and Reform, p. 52).

7.4.5 Housing Strategy

The City or County Development Plan provides a rationale for the amount of land proposed to be zoned for new residential development and for mixed use development, that is required to meet the proposed population growth over the lifetime of the Plan period. The aim is to ensure there is a reasonable alignment between the supply of zoned and serviced land and the projected demand for new housing, jobs, social and economic infrastructure.

The development plan is prepared in the context of the National Planning Framework (NPF), the relevant Regional and Spatial Economic Strategy for the area and any Ministerial Guidelines. At a national level, the NPF sets out a spatial planning framework for the growth for the regions, cities, towns and rural areas. This is further elaborated on in the relevant Regional Spatial and Economic Strategy for each of the regions.

As part of the Development Plan process, each local authority is required to develop a Housing Strategy, and local housing policy is expected to be based on this strategy. A key element of the Housing Strategy, is the identification of existing and future housing needs within all tenures for the overall area covered by the strategy – this will have implications for the amount of land to be zoned for housing purposes.

The Housing Strategy looks at housing supply and demand, including location (Identification of Pressure Areas), the nature and composition (1 Person, 2 Person, etc. households) of housing, tenure type (owner occupier, private rented, social rented, affordable and likely affordable price ranges for the locality), house types (detached, semi-detached, apartment), housing density (units per hectare), size (1 bedroom, 2 bedroom, etc.), vacancy/ occupancy/ dereliction rates, specialist needs (disabled, elderly, homelessness, travelling community), and so on. Very detailed analysis is carried out during the housing strategy that will guide, and hopefully deliver, housing supply by location, scale, price, type and so on.

The preparation of the Housing Strategy involves developing a detailed profile of local housing stock, including local authority housing. This allows the local authority to identify the main issues relating to supply and demand, vacancy and occupation, ineffective stock and overall condition, as well as priorities for future stock management. Information is provided on the size, type and conditions of dwellings and on housing stock pressures (occupancy/ under occupancy, stock turnover, etc.).

In this way local authorities as both housing and planning authorities must demonstrate the manner in which their development plan is consistent with the established NPF population projections for their local authority area.

National Policy Objective 37 of the National Planning Framework (NPF) requires that a Housing Need and Demand Assessment (HNDA) be undertaken by each local authority in order to ensure long-term strategic housing needs are met. According to the Department of Housing's Guidelines on Housing Need and Demand Assessment (2021, p. 7), the purpose of the exercise is to:

- "assist local authorities to develop long-term strategic views of housing need across all tenures
- provide a robust evidence base to support decisions about new housing supply, wider investment and housing related services that inform an overall national housing profile
- inform policies about the proportion of social and affordable housing required
- provide evidence to inform policies related to the provision of specialist housing and housing related services".

The HNDA contributes to the overall Housing Strategy document and therefore would normally be prepared involving staff from both the Housing Department and the Planning Department of local authorities working in cooperation. The HNDA gives local authorities an evidence base from which estimates of housing need and tenure breakdown can be calculated – this in turn will influence both local housing policy as reflected in the Housing Strategy and land use zoning objectives within the local authority's Development Plan.

7.4.6 Population Change and Housing Stock

Results from the 2022 census show that total housing stock has increased by 120,945 (6%) since 2016, but the rate of increase in stock trailed the rate of population growth (8%) – as was the case in the 2011-2016 period in contrast with the previous four inter-censal periods. As a result, the ratio of housing stock relative to population, which had improved consistently up to 2011, has fallen below its 2006 level.

The counties with the highest rate of population increase were Longford (14%), Meath (13%), Fingal and Kildare (11% each), while the lowest growth rates were in counties Donegal and Kilkenny (4.5% each), and Kerry and Tipperary (5.1% each). The greatest rates of increase in housing stock were in counties bordering Dublin, namely Meath (+12.14%), Kildare (+11.86%), and Wicklow (+9.32%), which is consistent with the relatively high rate of new development in these areas. In most counties, the rate of population growth was greater than the increase in the housing stock.

The census indicated that 266,064 dwellings were unoccupied, but when the reasons for no-occupancy were taken into account, a net total of 166,752 units were categorised as 'vacant'.

However, the potential increase in housing supply from this source is likely to be less than half that figure, since many of the factors involved in vacancy are likely to apply at any given time, and vacancy rates are relatively low in areas of greatest housing demand.

Average annual net inward migration of 31,722 persons from 2016 to 2022 was reported, a reversal of the net outflow experienced in the previous inter-censal period, amounting to a total of 190,333. However, the impact on housing requirements is likely to be greater than the net figures might suggest, since most new entrants are likely to need housing while many of those leaving tend not to be households releasing dwellings.

7.4.7 Affordable Housing

In response to variations in supply and demand, the prices of houses (to purchase) has ebbed and flowed, especially in the last 30 years. In the late 1990s, house prices rose very quickly, in part due to generous levels of lending by the bank sector. In response, the government introduced an affordable housing scheme in 1999 arising from the first Bacon Report (Peter Bacon and Associates (1998) *An economic assessment of recent house price developments – Report submitted to the Minister for Housing and Urban Renewal*, Dublin: Stationery Office). Under the 1999 Affordable Housing scheme, local authorities were required to provide newly built houses at a discounted price on their own lands. This scheme closed in 2011 for new projects owing to the economic downturn after 2008, and local authorities were contracted to purchase affordable houses that, owing to the collapse, were actually above the then market prices. The purpose of the scheme was to provide new properties for sale by local authorities, in areas where affordability was an issue, at a discount from the market value of comparable housing in the area. There was a site subsidy of up to €50,000 per houses with a claw-back in operation (reducing over time) if the house was sold within 20 years. Also, Part V of the Planning and Development Acts (see below) allowed local authorities to require that up to 20 per cent of land zoned for residential development be employed to meet the need for social rented housing and for affordable housing. This, of course, was on private land and no subsidy applied. Under one of the national social partnership agreements (*Sustaining Progress* agreed for the 2003-05 period), the government committed to increasing the supply of affordable housing by 10,000 units, and in 2005 the Affordable Homes Partnership was set up to drive and co-ordinate the output of affordable housing in the greater Dublin area (this body was later integrated into the Housing Agency in 2012). In short, the challenges of affordable housing have been present in the Irish housing market for over 30 years.

The 2022 First Home Scheme (FHS) is a housing scheme that supports people to buy new homes and is designed to make them more affordable. The scheme is based on shared equity, where the State pays up to 30% of the cost of a new home in return for a stake in the home. An applicant can buy back the equity at any time, but does not have to. FHS is a national scheme for first-time buyers and others who want to buy a new home but can't afford to (income is not assessed for the scheme).

There is a similar local authority scheme (known as the Local Authority Affordable Purchase Scheme) where the local authority buys a stake in the home. However, this scheme only applies in certain areas and is subject to eligibility criteria. The Local Authority Affordable Purchase Scheme assists first-time buyers on lower incomes in buying homes at reduced prices. New homes under this scheme are generally located in areas with considerable housing need and where affordability is often problematic. The local authority takes a percentage equity in the home that reflects the reduced price. For example, if there is a 20% discount on the price, the local authority takes a 20% stake. The owner can buy back the local authority's equity at any time but is not required to do so.

Part V refers to Part V of the Planning and Development Acts. The purpose of Part V is for the State to capture a portion of the increase in land value resulting from the granting of planning permission for residential development. Redmond et al. (2021, p. 5) define planning gain as being "based on the idea that land values are enhanced by the actions of the State or community, for example, through land use zoning and infrastructure provision, both of which increase the value of land. Landowners (around the edges of towns and cities) may have done little to cause an uplift in land value and may achieve what are called 'windfall gains' when land is purchased by a developer" (Redmond, Hegarty and Reynolds (2021) *Planning Gain and Obligations: Promise and Performance of Part V*, Dublin: Clúid Housing). Part V only applies to zoned residential or mixed-use land so it mainly applies in urban areas. The legislation is based on the State paying what is termed the existing use value of the land to the developer, rather than the market value. Developers are also paid construction costs and a profit.

Part V legislation allows local authorities acquire 20% of land at existing use value for the purposes of social and affordable housing. The use of land for social, affordable and cost rental housing is designed to contribute towards integrated development, mixed tenures, and reducing housing segregation. The Affordable Housing Act 2021 made a number of changes to Part V, detailing requirements on land owners that depend on the date of purchase of the land, and the date of granting permission. However notwithstanding these transitional arrangements, from 2026, all planning permissions granted for housing developments have a 20% requirement for social and affordable housing (regardless of when the land was purchased).

In terms of delivery outcomes, Redmond et al. (2021. p. 8) report that "between 2002 and 2020, a total of 19,302 dwellings were provided through the Part V mechanism. Of those, 52% (9,534) were affordable purchase; 29% (5,709) local authority social rented and 19% (3,789) Approved Housing Body (AHB) rented. Over the same time, a total of 70,574 new build social rented homes were built so Part V social, rented units account for 13.4% of the total. Since the reform of Part V in 2015 (requirement reduced to 10%), it has supplied on average one fifth of new build social rented housing" (Redmond, Hegarty and Reynolds (2021) *Planning Gain and Obligations: Promise and Performance of Part V*, Dublin: Clúid Housing).

Alternative approaches have been suggested in the debate over housing in Ireland. As the same report (Redmond et al., 2021, p. 14) comments, "in some countries, land zoning is undertaken for social housing, thereby affecting the underlying land value. This may reduce the cost of land, even if bought on the open market by the state … The city of Vienna has recently introduced a land use zoning category for 'subsidised housing'. In these zones two thirds of all floor space in developments with more than 50 units must be used for subsidised housing … A more fundamental approach would be for the State to acquire land for social housing for immediate and future needs. The Kenny Report of 1973 suggested that land be acquired at agricultural value plus 25%".

7.4.8 Cost Rental

The cost rental model involves the raising of finance by the providers of social housing to provide accommodation and the charging of rents that are sufficient to cover current and capital costs. There are already examples of cost rental initiatives in Ireland, but progress has been slower than expected. Project funding involves support from the Housing Finance Agency and in some cases the European Investment Bank. The cost rental model is expected to expand in Ireland, with targets for new homes to be provided through cost rental under the Government's *Housing for All* plan.

7.5 FUNCTIONS OF LOCAL AUTHORITIES

7.5.1 Assessment of Housing Need and Waiting Lists – Social Housing Assessments

The Assessment of Housing Need provides an overview of the level of need for social housing support and the different types of supports that need to be delivered by individual local authorities and across the country. It is carried out every year. The Summary of Social Housing Assessments (SSHA) is a process of annual assessments of identified national housing need carried out each year since 2016 based on the 31 local authority housing lists.

These are some of the key findings from the SSHA carried out in November 2022:

- "In total, 57,842 households were assessed as qualified for housing support as of 1 November 2022.
- The number of households qualified for social housing support decreased by 1,405 (2.4%) since the previous assessment in November 2021 and by 33,758 households (36.8%) compared to the first annual assessment conducted in September 2016. A total of 13 of the 31 local authorities recorded a decrease in numbers in 2022.
- The four Dublin Authorities (Dublin City, Dún Laoghaire-Rathdown, Fingal and South Dublin) account for 42.6% of the national total.
- One-adult households remain the majority household grouping on the waiting list at 54.9% [pointing to the need for small apartments].

- One parent family households continue to be the second highest household grouping.
- The Private Rented Sector (with and without RS) remains the largest tenure type for households on the waiting list. However, this has been falling steadily since 2016 (from 67.4% to 39.7% in 2022)" (Housing Agency, 2022, *Summary of Social Housing Assessments*, p. 8).

7.5.2 Housing Allocations – Allocation Scheme – Choice Based Lettings

Local authorities keep records of households that are qualified for social housing support. As social housing becomes available (these can be newly constructed houses/ apartments, AHB accommodation, vacancies), the local authority allocates it to households who are on its 'record of qualified households' – more commonly known as the housing waiting list/ scheme of letting. For AHBs the local authority nominates qualifying households to the AHB.

Each local authority draws up its own rules for deciding the order of priority on the housing list. These are called housing 'allocation schemes' (sometimes referred to as the scheme of letting priorities). The purpose of the allocation scheme is to prioritise the allocations to those with the greatest need. The making of an allocation scheme is a *reserved function* of the elected members and the scheme is subject to the approval of the Minister for Housing. The allocation of houses based on the criteria and priority categories set out in the allocation scheme is an *executive function*.

In addition, some local authorities operate a points system, giving each household on the list a points score depending on their particular circumstances. This is especially important where the waiting list is very large and the circumstances of households are changing. Generally, the allocation scheme will set aside dwellings for persons with special needs such as persons with disabilities, older persons, homeless, persons subject to domestic violence, refugee resettlement programmes, Travellers, temporary accommodation to meet a homeless need or other special needs.

Where vacancies arise, houses and apartments are then allocated from the housing list in order of priority. However, local authorities can also allocate a portion of their social housing using a system known as 'choice-based letting' (CBL). This approach allows local authorities advertise some of their social housing so approved social housing applicants can express their interest in the properties that are available. Local authorities can restrict CBL applications to people who are qualified for social housing but who also selected the location of the advertised property as an area of choice on their social housing application.

When the local authority is making an allocation, the housing staff will review the applications of the households who have expressed a preference for the area/ location/ estate, usually carry out a visit to the households to verify the stated need and whether circumstances have altered in any way. Obtaining the tenancy of a council house is *very*

significant when one considers the security of tenure it provides, the modest rent, the good maintenance and tenant purchase options. This is an area where elected representatives are very active owing to the clientelist nature of Irish politics.

In the event of two refusals of allocation offers made by the local authority or an Approved Housing Body in a twelve-month period, the housing application will usually be suspended for a period of 12 months. During this period no allocation of social housing support can be made, and this time will not be added on to the time on the housing list period. The order of priority for housing allocations usually comprises:

- **Emergencies**: Persons being displaced from Dangerous buildings under the Local Government (Sanitary Services) Act, 1964, or potentially dangerous buildings under the Fire Services Act 1981 or persons rendered homeless by fire, flood, storm damage etc.
- Households that are **homeless** as defined by section 2 Housing Act 1988.
- Applicants living in **unfit conditions** as defined in Section 66 of the Housing Act, 1966.
- Applicants living in **overcrowded conditions** as defined in Section of 63 of the Housing Act, 1966.
- **Older persons** (aged 55 years or more). Accommodation under this category will be those provided specifically for older persons or that is specifically suited to the older person's need.
- Applicants in need of housing on **disability, medical, compassionate** or other similar grounds.
- **Traveller** households.
- Applicants not included in any other category above, who have been assessed and approved for social housing support.

It should also be noted that existing tenants of local authorities, including tenants of dwellings provided under the Social Housing Leasing Initiative, RAS, HAP Transfers or by Approved Housing Bodies may apply for consideration for a transfer to other dwellings, where there is existing overcrowding, or older persons and other households wish to move to smaller accommodation (downsizing), or where priority is claimed on Disability / Medical Grounds.

7.5.3 Housing Stock Maintenance, Vacancy Management

Local authorities are the biggest landlords in the State, managing some 150,000 units of accommodation. A total of 2,124,590 permanent dwellings were counted in Ireland during Census 2022, meaning that local authorities manage 7% of Ireland's housing stock (which is relatively low compared with previous years). Under the 1966 Housing Act and subsequent legislation, local authorities are responsible for the repair and maintenance of the public housing stock. The legislation also specified that local authorities retain the right to reconstruct, enlarge or improve any dwelling that they own. Housing maintenance and

repairs is a core element of the housing service – if repairs and maintenance are not carried out to a sufficient standard, this will have negative knock-on consequences for the wider housing service. For example, the re-letting of accommodation will be much slower if the maintenance service does not bring units up to the required standard in good time. Minimising housing vacancies has been a key priority in recent years.

The age and condition of this housing stock varies. Large amounts of houses have been sold off under tenant purchase schemes. The driving impetus for such large scale provision was the urgent need for accommodation as a top priority. The outcome was generally large or very large estates, where well built homes were located. The design of some estates worked very well, in others it failed (Ballymun towers). To support native industry, timber windows were used. To help with fuel poverty, open fireplaces (sometimes with back boilers) or ranges were installed but no central heating was allowed originally. As in the private sector, there was no insulation and energy usage was not a consideration. In many cases the outcomes have been social housing stock and estates that require a high level of maintenance, while rents remain *very* modest, at a national average of c. €60 per week in 2022.

Local authorities provide for maintenance costs in their annual budget, from their own revenue resources. The allocation of monies to this important function forms part of the annual budgetary process, and as such is subject to local political priorities. There are generally two types of maintenance, response based and planned. Inevitably demands are placed on local authorities to respond to demands from tenants for repairs. The relationship between the council and its tenants is set out in the tenancy agreement, which the tenant(s) must sign before they can occupy the property. Generally tenants have responsibility for the following:

- minor internal plaster cracks, cupboards, wardrobes and kitchen unit doors, drawers, handles, locks and catches, sweeping chimneys
- maintenance of gardens, hedges, TV aerials, sheds, gates and boundary walls
- door locks and handles, replacement of window glass and letter boxes
- cleaning of gutters and downpipes
- maintaining smoke and carbon dioxide alarms.

The local authority on the other hand is responsible for major structural issues, including replacement of windows and external doors and electrical and plumbing maintenance. As tenants place a lot of maintenance demands, local authorities can prioritise these demands based on different classifications (see example below from South Dublin County Council):

Table 7.2 Maintenance Categories

Category	Timescale	Examples
Emergency	1-5 working days	Leaking water tank, smoking socket/fuse board
Urgent	10 working days	Leak under sink, leaking roof
Routine	12 weeks+	Replace toilet cistern, faulty radiator
Cyclical	1-7 years	Leaking gutters, replacement hall door, etc.

Source: South Dublin County Council

Where tenants surrender their properties back to the local authority, the houses may need a lot of repairs/ upgrading prior to re-letting. The national average re-letting time from the date the tenant vacated the dwelling to the date of the first rent debit in 2022 was 35.22 weeks, higher when compared to 28.17 weeks in 2019. The average letting cost was €21,886 compared to €18,336 in 2019 (NOAC Local Authority Performance Indicator Report 2022).

Expenditure on housing maintenance varies quite considerably between local authorities. By way of example, the maintenance cost per unit recorded across the 31 local authorities ranged from €442.94 in Carlow in 2022 to €2,802.87 in Galway City (NOAC Local Authority Performance Indicator Report 2022).

7.5.4 Planned Maintenance – Housing Standards

There is now greater awareness of the energy performance of all buildings and commitments to reduce the use of carbon and limit greenhouse gas emissions. The State has been active in setting minimum standards for rented properties. Most of these standards apply also to local authorities (with some exemptions for caravans for members of the Travelling community). The standards are important as they deal with structural condition, sanitation, heating, food preparation area, ventilation, lighting, fire safety and so on. Local authorities are required to carry out inspections on private rented properties to ensure compliance with the regulations. The inspection rate of registered (private) tenancies has historically been low, in part due to lack of resources in this area.

As much of council rented stock was constructed before energy performance standards were set, local authorities have been carrying out major re-fit programmes to improve these buildings' environmental sustainability. Overall, housing (public and private) accounts for a quarter of Ireland's energy use, and 10% of Ireland's greenhouse gas emissions. Reducing the carbon footprint of housing stock is a central element of the national Climate Action Plan and local authority action plans also. *Housing for All* contains targets for the retrofitting of local authority owned homes.

7.5.5 Rent Assessment, Collection and Arrears Management

Local authorities set and collect rents on their housing stock based on section 58 of the Housing Act, 1966. It is important to note that the making or amending of the rent scheme is an *executive function*.

All local authorities use a 'differential rent scheme', which means that rent is means tested and is based on the assessable income of the household and is payable weekly. While rent schemes are broadly similar, there are some differences between schemes and there are also differences in collection levels. Rents are generally reviewed annually, as the income of the household can vary. Many households are dependent on social welfare (elderly, disabled, unemployed, etc.), and these rates are usually increased every year. In addition, many tenants may secure or lose employment in course of 12 months. Older children (subsidiary earners) may leave or return home. All these income streams are reckonable to determine the differential rent to be paid. A proportion of the principal earner's income is taken, together with a contribution from all subsidiary earners in the household. Failure to review or declare income variations may result in arrears, which can increase quickly and present rent payment/ collection problems. Tenants can have concealed income (e.g. new or better paid employment) that they may fail/ omit to declare. Persons may be residing in the property but are not declared for rent assessment purposes.

Rents are calculated as a proportion of the 'assessable net income' of the principal earner (the highest income in the household-not necessarily the tenant) together with a contribution from any subsidiary earners aged 18 years or over in the household. In addition to rents, the local authority may apply extra charges to some properties to cover the cost of additional services provided to them, e.g. boiler maintenance, etc. Deductions are allowed for dependent children.

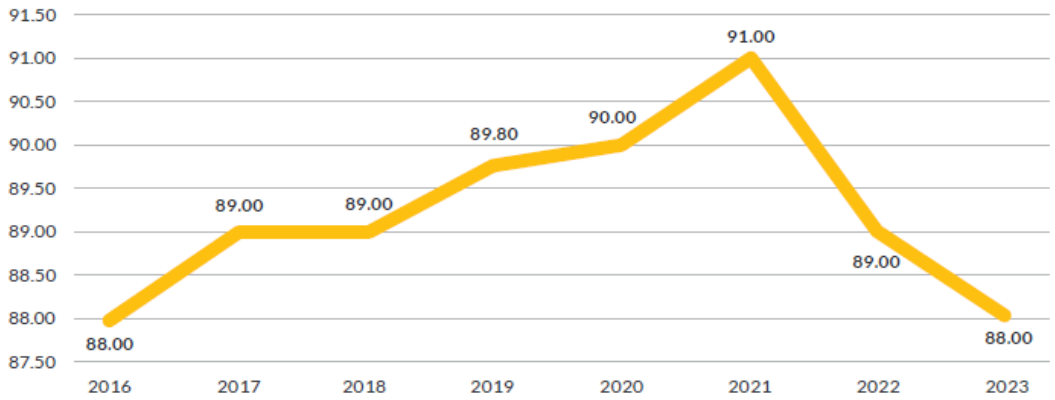
Certain incomes are not reckonable (child benefit, fostering allowances, fuel allowance, living alone allowances typically) for rent purposes. Income from overtime, bonuses and commissions are generally reckonable. Where there is a change in circumstances the onus is on the tenants to communicate this to the council. Local authorities offer a number of payment options such as household budget, standing orders, billpay, local or area offices and so on to facilitate easy payment.

There are some 150,000 rented properties by local authorities, with a national average weekly rent of €60 in 2022. This indicates that, approximately, some €470m in rent is to be collected per annum (allowing for vacancies and voids). It is worth noting that this amount is similar to the total Local Property Tax yield.

The performance of local authorities in terms of rent collection is commented on every year when NOAC publishes its report on the performance indicators. For 2022 NOAC noted that Dublin City had the lowest rent collection rate at just 73%. Cork County was the highest at 100%.

Figure 7.4 Rent Collection Performance

2016	2017	2018	2019	2020	2021	2022	2023
88.00	89.00	89.00	89.80	90.00	91.00	89.00	88.00



Source: NOAC

The above table (taken from the NOAC Performance Indicator Report 2023) shows the national average of rent collection improving slowly up to 2021, but dipping thereafter.

Each local authority reports on its individual performance in the Annual Financial Statement in Appendix 7. This appendix provides details of arrears at the start and conclusion of the year.

Rent collection and management is a challenging area for local authorities and can be resource intensive. The timely collection of rents is important for tenants. It funds housing maintenance, and early intervention can avoid the build-up of arrears. Many tenants live on modest incomes and have limited budgets and can ill-afford to fall into arrears. It is important that local authorities recognise this and manage and resource the rent collection function well.

Another important point is that there is considerable variation in how differential rents are calculated across local authorities, both with regards to what is treated as assessable income and in terms of the contribution rates and thresholds applied – for some this can be a concern on the grounds of equity. *Housing for All* commits to reforming the system of differential rents in order to "ensure tenants pay an equivalent amount of rent regardless of their location" (Department of Housing, 2021, p. 22). This commitment was also contained in previous government housing strategies but was not delivered.

7.5.6 Regeneration

The construction of very large social housing estates in the 1960s and 1970s was rapidly followed by changing social structures, increased anti-social behaviour, illegal drug use, and criminality. As a result, many such estates were faced with extreme challenges around management, maintenance and community structures. The Surrender Grant Scheme introduced in the 1980s (see above) greatly exacerbated these challenges, with many employed families leaving these troubled estates. This altered the social profile of these estates, as those with jobs and income left to be replaced by those without jobs and, in many cases, by single parents or single homeless people. Communities where unemployment was already high found this level of disadvantage accentuated with the departure of those who gained employment moving to other areas. Income levels dropped, as did the local authorities' rent income, and services in the estates deteriorated as maintenance could not be afforded. Vacant houses could not be re-let and were vandalised, which led to a deterioration in the physical appearance of the estates.

Many tenant purchasers were trapped as houses around them were vandalised and burnt out. As year after year the community fragmented, the community spirit was broken, unable to cope with the implications of poorly thought through government policies. Less popular estates became severely residualised as houses were unlettable. Communities felt abandoned by the apparatus of the State as criminality increased, school pupil numbers dropped and unemployment levels grew. Certain estates became known nationally and, sometimes unfairly, for all the wrong reasons.

The impact on management problems for local authorities was not anticipated but was devastating, galvanising both the government and local authorities into early regeneration initiatives. The Remedial Works Scheme (RWS) commenced in 1985. This scheme funded the refurbishment of the rented stock of local authorities, but it had limited success as the issues in the estates were social (poor educational achievement, crime, inadequate policing) rather than physical. The 1980s had the effect of intensifying problems in social housing estates. The most serious problems were occurring in estates that had more than a thousand dwellings and almost all of these were located in the cities. The RWS offered 100% capital funding for internal works (kitchens, bathrooms and, external works (windows, cladding, roofs). The RWS aimed to seek more tenant involvement in local estate management.

A Plan for Social Housing published in 1991 provided that tenants should become more involved in running their estates. This of course depended on having well-disposed community leaders who would provide the spur for residents to become involved and help with communications. As a follow up, the *Building Sustainable Communities* policy framework launched in 2005 has as a key objective the creation of sustainable communities, and to meet individual accommodation needs in a manner that facilitated and empowered personal choice and autonomy.

In the early 2000s there was a growing impetus behind the regeneration of local authority estates, including Ballymun, Dolphin House, O'Devaney Gardens and St. Teresa's Gardens in Dublin, Cranmore in Sligo, several estates in Limerick (Moyross, St. Mary's Park, Ballinacurra Weston and Southill), Knocknaheeny in Cork (now known as Cork City Northwest Quarter Regeneration). National government committed considerable capital resources to these regeneration initiatives. The focus of regeneration was more comprehensive than simply dealing with the physical conditions of the estates, and was broadened to understand and respond to the causes of decline, such as design of dwellings and estates, housing management standards, social aspects and economic factors. This required a whole-of-government approach at a local level involving many different service providers such as Gardaí, Department of Education (schools performance), Education and Training Boards, Probation Service, Community and Residents Groups and so on and was a major change and challenge for the local authorities involved. Different estates had different issues and so required different emphasis and solutions. One consistent theme that emerged from these endeavours was that the days of very large scale mono-tenure estates was over, thus under-pinning the positive social mix that the new housing supports approach of HAP and RAS can support. The ultimate objective was to create more sustainable communities through an emphasis on community development.

7.5.7 Tenant Purchase Scheme

The tenant purchase scheme is a long-standing housing support that dates back to the 1930s when tenants of county councils were afforded the right to purchase the dwelling they rented – the Housing Act 1966 extended this right to tenants of local authorities generally. Since then, two-thirds of all housing units constructed by local authorities were bought by tenants, and this account for roughly a quarter of owner-occupied homes across Ireland. Government housing policy viewed the tenant purchase schemes as an important contribution to the stabilisation of housing estates, in the upkeep of the houses and in promoting community development.

Other commentators, however, would argue that these sales have been linked to the 'residualisation' or increased concentration of low-income households in the local authority sector. Those tenants not availing of the scheme were usually those who were less well off, creating social problems on some estates. It also had revenue implications for local authorities due to the fact that rents are linked to the incomes of tenants – this meant that more low-income tenants resulted in reduced rental revenue to cover maintenance and upkeep. In addition of course, tenant purchase reduced the volume of housing stock that can be made available by local authorities to meet the demand for social housing and ever growing housing waiting lists, and this in turn increased the level of dependence on the private rented sector.

Since the introduction of a nationwide tenant purchase scheme in the 1960s, the terms on which properties have been sold to tenants have been revised on a regular basis. The current version of the scheme is sometimes referred to as the 'Incremental Tenant Purchase

Scheme'. A discount is applied to the *market value* (not replacement cost) of the property, with the discount off this price varying based on the income of the tenant (excluding certain social protection payments).

7.5.8 Loans for House Purchase

Local authorities also have a long track record in providing mortgage loans, and this provision has along with tenant purchase played a key role in the expansion of home ownership in Ireland. Traditionally and up to the 1980s, local authorities provided mortgages to a range of different income groups. From the late 1980s, eligibility criteria were changed whereby local authority mortgages were increasingly targeted to focus on low-income households who had failed to secure a mortgage from a commercial lending institution.

Local authorities offer mortgages for particular categories of applicant for the purchase of newly constructed or second-hand properties or for the building of a dwelling. Loans are provided at reduced interest rates which are fixed for the full term of the mortgage, so the same repayments apply for the lifetime of the loan.

Borrowers can obtain loans for up to 90% of the market value of the property. Maximum market values apply to different counties. Eligible applicants include first-time buyers or so-called 'Fresh Start' applicants. The latter includes those who have experienced a breakdown in a previous relationship (and where they have no financial interest in the family home), and those who have been subject to a personal insolvency or bankruptcy. Various other eligibility requirements apply.

Borrowers must save 10% of the house purchase price themselves and must be able to demonstrate that they can afford the repayments, coupled with all their other outgoings. Data from the Department of Housing show that there is a high level of rejection of applications for housing loans. This is because the majority of applicants who are refused have failed to demonstrate an adequate repayment capacity or had a previous credit history that was deemed unsatisfactory. Local authorities had €250 million to lend through the scheme for 2022. Urban areas receive the most applications but have recorded the biggest rejection rates on account of the relatively high prices for homes.

7.5.9 The First Home Scheme (FHS)

As noted in an earlier section above, the First Home Scheme (FHS) is a housing scheme designed to support people to buy new homes and ultimately make housing more affordable. It is based on shared equity, where the State and participating banks can pay up to 30% of the cost of an applicant's new home, in return for a stake in the home. The applicant can buy back the stake at any time, but there is no obligation to do so and it can be bought in tranches.

The scheme is geared towards those who want to buy a new home but can't afford to. An applicant's income is not assessed for the FHS. Applicants must be a first-time buyer or a 'Fresh Start' applicant (as above) and the property has to be a new-build in a private development.

7.6 HOUSING ADAPTATION GRANTS

7.6.1 Disabled Persons

A Housing Adaptation Grant for People with a Disability (formerly known as the 'disabled persons grant') may be provided by a local authority where changes need to be made to a home to make it suitable for a person with a physical, sensory or intellectual disability or mental health difficulty. The types of works that are covered by the scheme include improving wheelchair access through construction of access ramps, downstairs toilet facilities, stair lifts, accessible showers, and other works that are identified as necessary to accommodate a disabled resident. The grant is means tested – if the household income exceeds the maximum threshold, no grant is paid. For those below the maximum limit, the percentage contribution that the grant can make towards the costs of the works will vary depending on household income. A maximum grant level also applies, regardless of income level.

Ireland is an ageing country, and many local authorities subscribe to age-friendly policies. This scheme allows many elderly or disabled persons remain in their homes for as long as is possible. It has been shown that this can improve a person's quality of life, prolong their lives and keep them close to loved ones. It also eases pressure on hospitals and care homes. This is a very worthwhile scheme for very many people. Grants are 80% funded by the Exchequer with 20% coming from the own resources of the local authority.

7.6.2 Mobility Aids

Councils can provide grant aid for minor works to address mobility problems in privately owned homes under the Mobility Aids Grant Scheme. This grant is largely intended to apply to older people, but can also be availed of by people with a disability who find it hard to move around their home due to mobility issues. The Mobility Aids Grant scheme can cover the costs of installing a range of facilities, such as grab-rails, level access showers, access ramps, stair-lifts, and other necessary minor works. This grant is also means tested and available only to those with a household income falling below a maximum threshold. A maximum grant level also applies.

7.6.3 Housing Aid for Older People

The Housing Aid for Older People Grant is used to improve the condition of an older person's home through repair or improvement works with a view to supporting them to continue to

live there independently. It is aimed at those aged 66 or above and living in poor housing conditions. The types of works that can be carried out under this scheme include structural repairs or improvements, such as re-roofing, re-wiring, dry-lining, replacing windows and doors, installing central heating, and other repair or improvement work considered necessary. As with other types of grants, applicants are subject to a means test. In addition, the percentage contribution that the grant can make towards the costs of the works varies depending on household income levels.

In 2021 there were 10,283 grants delivered at a total (exchequer and local) cost of almost €71m under the above 3 schemes. The nature of these schemes, with their specific focus, allow for the targeting of resources to those with the greatest need.

7.7 HOMELESSNESS

7.7.1 Definition and Trends in Homelessness

There are several definitions that can applying to the category of 'homelessness'. Under the Housing Act 1988 (section 2) a person is considered homeless where:

- there is no accommodation available in the opinion of the local authority that a person can reasonably stay or remain in
- a person in a hospital, county home, night shelter or other such institution, and there is no suitable accommodation
- a person is unable to provide accommodation from their own resources.

This can include situations where a person is sleeping rough, or staying in an emergency hostel, in a refuge or shelter, is temporarily in bed and breakfast or hotel accommodation, or is temporarily staying with friends or family because they have nowhere else to go, as well as where a person is occupying a building illegally (squatting).

One prominent non-governmental organisation working on homelessness, the Simon Community, suggest that the causes of homelessness can be divided into a number of different categories: institutional, relationship, personal, and structural causes. Institutional can relate to particular categories of people living in a particular setting and at risk of homelessness, such as those in foster care, those leaving refugee centres, mental health facilities, or ex-prisoners. Relationship issues include incidents where family relationships break down, as well as victims of domestic violence. Personal causes can relate to individual circumstances such as addiction and substance abuse, as well as mental health issues. Structural causes refer to the wider socio-economic conditions that affect the extent to which affordable and secure housing is available – these kinds of causes of homelessness include the limited supply of social and affordable housing, an over-reliance on the private rental market, poverty, and discrimination.

According to the Simon Community:

> … over the past decade structural causes have been the main driving force behind the large increase in homelessness in Ireland. The number of people in emergency accommodation grew considerably in the years following the economic crash, peaking at over 10,500 people in emergency accommodation in late 2019 on the back of structural issues in the housing system. Although this fell during the Covid-19 Pandemic in 2020 due to the moratorium on evictions, it has risen once again. A lack of home-building in the private market since 2008 and increased demand from a growing population has led to record increases in rents. record rents have pushed lower income families and people into homelessness. Exacerbating this problem, the Irish rental market is still characterised as one in which tenants lack long-term security of tenure and rent certainty when compared to other European countries.

Youth homelessness has been a growing trend in Ireland with the number of young adults becoming homeless increasing year on year. Again a range of factors or causes can arise, and these might include conflicts within the family, violence at home, drug or alcohol abuse, behavioural issues, leaving foster care, or leaving prison or juvenile detention centres. Tusla has responsibility under the Childcare Act 1991 to provide for the care of children who can no longer stay in their family setting.

While there is no automatic legal right to adequate shelter and housing in Ireland, local authorities have general responsibility for providing housing for adults who cannot afford to do so through their own means, and Tusla has a responsibility for the welfare of and accommodation for children who are in need of care and cannot remain at home.

Chapter Six of the Housing (Miscellaneous Provisions) Act, 2009 provides a statutory framework on addressing the needs of people who experience homelessness. The Act requires the adoption of an action plan and the formation of a Homelessness Consultative Forum and a Statutory Management Group.

Housing for All provided for the establishment of a National Homeless Action Committee (NHAC), which was set up in towards the end of 2021. There has been an ongoing focus on trying to reduce the number of homeless families and individuals to prevent homelessness. The Government has set as a target to work towards eradicating homelessness as a national strategic goal. *Housing for All* recognises "the criticality of interagency supports required to address the complex combination of social, health and economic needs of homeless persons and those at risk of homelessness, in addition to their specific housing need" (Department of Housing, 2021, p. 50). It is within this context that the National Homeless Action Committee was established as a new governance and delivery-oversight structure, bringing together key Departments, agencies, local authorities, AHBs, homelessness organisations, and stakeholders.

7.7.2 Housing First

Housing First is a programme designed to assist those with a history of rough sleeping or long-term use of emergency accommodation, and with complex needs, to access permanent secure accommodation. The approach is based on a range of health and social supports to assist those who have been homeless to live independently and maintain their accommodation.

The table below indicates the number of Housing First candidates to be supported over the 2022-26 period by region and local authority.

Table 7.3 Number of Housing First candidates by region and local authority

Region	Total Adults	Local Authority	Total Adults
Dublin	707	Dublin City Council	396
		Dún Laoghaire-Rathdown County Council	85
		Fingal County Council	113
		South Dublin County Council	113
Mid-East	70	Kildare County Council	37
		Meath County Council	24
		Wicklow County Council	9
Mid-West	52	Clare County Council	21
		Limerick City and County Council	31
Midlands	77	Laois County Council	35
		Longford County Council	7
		Offaly County Council	15
		Westmeath County Council	20
North-East	40	Cavan County Council	7
		Louth County Council	30
		Monaghan County Council	3
North-West	74	Donegal County Council	21
		Leitrim County Council	8
		Sligo County Council	45
South-East	129	Carlow County Council	18
		Kilkenny County Council	17
		Tipperary County Council	32
		Waterford City and County Council	36
		Wexford County Council	26
South-West	105	Cork City Council	45
		Cork County Council	24
		Kerry County Council	36
West	65	Galway City Council	30
		Galway County Council	18
		Mayo County Council	10
		Roscommon County Council	7
Total	**1,319**	**Total**	**1,319**

Source: Department of Housing, Housing First National Implementation Plan 2022-2026

The above table represents a significant extension and expansion of the homeless programme, with specific targets assigned by region and by local authority. In the past there was a tendency of homeless services to be concentrated in the major cities owing to lack of provision outside of them. Now each local authority is required to work in conjunction with the contracted homelessness organisations (COPE, Simon Community, Focus, etc.) to ensure that suitable properties are in place to meet the Housing First targets set out in the plan.

7.8 PRIVATE TENANTS SUPPORT AND RENTED ACCOMMODATION

While the proportion of housing given over to the private rented market declined during the 20th century, the start of the 21st century saw an increase in this sector. This reflects in part the difficulties many face in purchasing their own home, and the decline in the construction and acquisition of social housing. Affordability challenges in the rental sector are also frequently the cause of much political and media debate.

7.8.1 Rental Accommodation Scheme

The Rental Accommodation Scheme (RAS) was introduced in 2004. Under the scheme, local authorities are responsible for sourcing the accommodation in the private market. Local authorities pay landlords a rent equivalent to 92 per cent of the market rate and tenants pay a differential rent contribution based on their circumstances. The level of the rent paid by the local authority is set by reference to the average market rent levels in the local area. RAS facilitates a three-way contract between the tenant, landlord and the local authority.

Under RAS, the local authority draws up a contract with a landlord to provide housing for people with a long-term housing need. The landlord agrees to provide the accommodation for a period covered in the contract. The local authority pays the rent to the landlord, while the tenant pays a differential rent to the local authority, this is their component of the contract (as well as agreeing to keep the property clean and take care of it). Tenants who take up full-time employment can stay renting under RAS. A household which avails of RAS is regarded as having their accommodation needs met, but remain on the local authority's waiting list. Tenants of RAS are eligible for a transfer to a local authority or Approved Housing Body tenancy.

An inspection is carried out by the local authority prior to the commencement of a RAS tenancy, to ensure that the property is compliant with private rented housing standards. This process is designed to improve the quality of private rented accommodation generally. Landlords must also register RAS tenancies with the Residential Tenancies Board (RTB), and the tenancies are covered by general residential tenancies legislation.

Under a RAS contract the landlord retains responsibility for issues relating to maintenance and repairs. Where other issues such as rent arrears, anti-social behaviour, or breaches of the

RAS tenancy agreement, the contract can be terminated by the local authority. A landlord can also terminate a RAS contract during an initial probation period of the first six months.

7.8.2 Housing Assistance Payment

The Housing Assistance Payment (HAP) was introduced as a pilot in 2014 in 3 local authorities before being rolled out nationally in 2017. HAP has a number of similarities to RAS and was introduced with the intention that it replace RAS and long-term Rent Supplement over time. Both schemes rely on sourcing private rented accommodation to meet social housing need. Similar to RAS, HAP tenants must be eligible for social housing, and they pay a differential rent contribution based on their circumstances to the local authority. The local authority in turn pays the full market rent to the landlord. One difference is that unlike with RAS, HAP tenants must source their own accommodation in the private rental sector, and pay their own security deposit to the landlord. Equally, where a tenancy ends, HAP tenants are responsible for finding new accommodation.

One of the suggested benefits of HAP is that it is based on choice. In principle, a tenant can identify their preferred location(s), along with the appropriate size and features of dwellings that best suit their needs and circumstances. Since was introduced in 2014, the combined number of properties rented through HAP support has risen steadily, and HAP and RAS are now the main ways through which social housing is sourced through the private rental market. Over the same time, the number of Rent Supplement recipients has declined as short-term claims ended, and longer-term claims were moved over to either HAP or RAS.

By mid-2022, a total of almost 106,000 HAP tenancies had been delivered by local authorities nationally. Of these some 45,000 were closed as applicants/ landlords exit HAP, leaving just over 60,000 active HAP tenancies at that time. This number had started to reduce during 2021 and this trend has continued. In part this is due to landlords exiting the market as property prices continued to increase.

In order to avail of HAP, a person must first apply to their local authority to be assessed as qualifying for social housing and placed on the housing waiting list. Once this is determined by the assessment team, the applicant is advised whether they are eligible for HAP and the relevant HAP application form is issued.

HAP allows recipients to work full time – as opposed to the Rent Supplement scheme which has qualifying income limits. HAP tenants are required to notify the local authority of any changes to household income or family composition as this may impact on the differential rent. HAP tenants are required to complete 2 years in their current property. If HAP tenants wish to leave within the 2 years, they are required to seek the consent of the local authority to move. This is designed to make the scheme more attractive to landlords. After 2 years a tenant is free to move. If the tenants move without the agreement of the local authority, the local authority may exclude them from all forms of social housing for 12 months (in the

absence of a valid reason from the tenant). Valid reasons can include moving for work, education, lack of sustainability due to rent increase and medical reasons.

Once they have secured private rented accommodation, HAP tenants are removed from the social housing waiting list. Unlike a local authority tenancy, when a HAP tenancy ends it is the responsibility of the tenants to source new HAP accommodation. HAP tenants can return to the local authority or an AHB (Approved Housing Body) waiting list if they apply to the local authority's transfer list.

Inspections of HAP accommodation by the local authority technical staff must be arranged within eight months of the HAP tenancy commencement date, but it is fair to say that significant challenges exist at local authority level to deliver on these inspections.

HAP tenancy agreements are similar to all private rental tenancies and therefore are subject to the Residential Tenancies Act 2004 (as amended). In principle, the rent should be within specified HAP rent limits for household size and location. Local authorities have the power to concede a discretionary uplift in HAP payments, and this has been widely used. Different local authorities have different maximum ceilings for HAP rental support, with the discretion to increase limits where necessary (up to 35% from 2022), as rent levels increased. Separate to this state top-up, many tenants are reported to be topping up the state funding themselves, as state set rent maxima became unrealistically low with the passage of time.

Homeless HAP is a scheme that gives local authorities discretion to exceed the HAP rent limits for homeless households, including people in homeless accommodation. Local authorities are authorised to uplift HAP amounts by up to 20% and, in the Dublin region, this discretion can rise to 50%. Homeless HAP operate a place finder scheme where the homeless team can source properties and provide security deposits and the first month's rent.

HAP has become, in a very short time, a key means of providing housing support in the private rental sector. A significant public investment has been made in this scheme. Some criticisms have been levelled at HAP, from the point of view of both tenants and landlords. HAP tenancy agreements can cease due to either tenant or landlord reasons and also for compliance reasons. Data from the Department of Housing suggests some level of insecurity attached to HAP as a form of social housing. HAP landlords are free to end their lease at the end of the contract (with the tenant), to sell the property or to put it back on the rental market outside the HAP scheme. Even occurring on a modest scale (as is now beginning to happen), this can have major implications for the affected families, and it means that the housing system is coping with an additional source of homelessness. However it is worth noting that just over a third of all exits from HAP since the commencement of the scheme are categorised as 'tenant led'.

Landlords also face restrictions with HAP. Upward increases in rent must be agreed with the Residential tenancies Board (RTB) first. In addition, these increases are governed by rent pressure zones. Some tenants may stop paying their top up and it can take a long time for

the matter to be considered and adjudicated upon by the RTB. Some landlords argue that the balance in the contract is biased towards the tenants and thus restricts the landlords' discretion.

Individual landlords make up the majority of HAP landlords, but the HAP scheme also involves the public financing of private corporate landlords. Corporate landlords in the private rental market are in most case international investors, such as REITs (Real Estate Investment Trusts) and pension funds – these landlords have a more significant presence in the renting of private apartments and homes in urban areas. This policy has faced some criticism in public discourse.

There is no doubt but that the HAP scheme has grown in the relatively short period since its establishment. In terms of its overall objectives, it could be argued that HAP has:

- facilitated and promoted sustainable communities through better integration
- allowed social housing applicants more choice of where to reside
- improved rent collection levels (to the very high nineties) compared with the conventional and comparable rented social stock
- helped avoid the poverty trap where tenants secure employment.

Overall, HAP has modernised social housing option delivery and eased pressure when social housing construction has been at very low levels. That said, several housing advocacy groups have pointed out some of the downsides of HAP, including the need for more security of tenure for HAP tenants, and the fact that HAP limits often cannot address the needs of low-income groups (e.g. HAP 'top-ups' by tenants).

7.8.3 Housing Inspections, the Residential Tenancies Board and Rent Pressure Zones

All private landlords, Approved Housing Bodies (AHBs), and all providers of Student Specific Accommodation must register their tenancies with the Residential Tenancies Board (RTB). At the end of 2022, there were almost 250,000 private tenancies in the sector, showing the scale and importance of the private rented sector to the Irish market.

Rent Pressure Zones (RPZs), introduced in 2016, are designated areas where rents are rising, and where tenants encounter particular difficulty finding affordable accommodation. Rent increases are limited to a specified maximum (based on percentage increases on existing rent levels) in these areas. The aim of RPZs is to moderate the increase in rents in these areas and bring greater stability to the rental market.

All landlords are also required under legislation to comply with standards for rental housing and fire safety standards. At a general level, amongst other things the standards require that property should be free from damp, that hot and cold water is available, that there is adequate ventilation and heating, that the property has facilities and appliances for cooking, storage of food and laundry, and that wiring, gas and water is in good and safe working order.

These standards are set out in the Housing (Standards for Rented Houses) Regulations 2019. Not all standards apply to local authorities or AHBs. They do not apply to communal housing being let by the HSE or an AHB.

Local authorities are responsible for ensuring compliance of minimum standards and fire safety and for carrying out inspections on private rented accommodation. This is an important task as it affords a level of protection to tenants and landlords. The DHLGH issued guidelines to local authorities in relation to implementing the standards in November 2021.

Housing for All has a target of 25% for the inspection of rental properties for compliance with the minimum rental standards. The 2016 report by the National Oversight and Audit Commission (NOAC) *A Review of Local Authority Performance of Private Rented Houses Regulations Functions* found that the inspection process as then administered was not having a sufficient impact on the standard of rented accommodation. It indicated overall low rates of inspection, few enforcement processes and low rates of compliance. There was little consistency in approaches to implementation of the regulations across local authorities. Staff numbers working on inspection functions were inadequate, and less than 10% of registered tenancies were being inspected each year, with rates in some local authority areas considerably lower.

According to the NOAC Performance Indicator Report 2022, local authorities carried out over 40,000 inspections on private rented dwellings, up from over 22,000 inspections carried out in 2020. The data provided from the inspections indicate that the vast majority of properties were not in compliance with the regulations.

7.9 TRAVELLER ACCOMMODATION

The Housing (Traveller Accommodation) Act 1998 requires each local authority to prepare a 5 year Traveller accommodation programme to meet current and projected accommodation needs of Travellers in their areas.

Accommodation for Travellers is provided across a range of options and it is open to Travellers to opt for different forms of accommodation. These include:

- Standard local authority housing, which is financed from the Department of Housing's capital allocations for social housing.
- Private rented accommodation.
- Private housing assisted by local authorities or voluntary organisations.
- Traveller-specific accommodation which receives 100% capital funding from the Department. Traveller-specific accommodation includes group housing schemes and halting sites.

Traveller accommodation has proven to be a difficult area for local authorities and communities to get right. The needs and preferences of Traveller families can vary, and implementing these preference can be difficult in practice. Some Traveller-specific accommodation works well, but there are other instances where it has not, with adverse consequences for the public perception of Travellers and challenges arising when new proposals for accommodation arise. For example, issues around maintenance, litter, family compatibility, anti-social behaviour and the presence of horses can often arise in relation to halting sites.

Statistics have long demonstrated some key differences in the levels of disadvantage between Travellers and the rest of the Irish population. Life expectancy is dramatically shorter for Travellers compared to the rest of the population. Unemployment rates are much higher and educational attainment is lower. Travellers also face significant discrimination. Some of the problems (particularly healthcare outcomes) can be linked to the housing standards in Traveller accommodation.

The 2022 Census recorded that while the majority of Travellers lived in standard permanent accommodation, some 8% were living in caravans, mobile homes or other temporary accommodation, down from 12% in 2016. Local authority data suggests that the majority of Travellers have a preference for standard social housing. Travellers have specific cultural considerations with regard to housing that needs be taken into account, such as larger family sizes, the tradition of nomadism, the use of caravans and horses.

Local authorities who had provided transient sites in the past found that they were difficult to manage and so ceased operating the sites. Additionally, the implementation of trespass legislation has had a severe impact on members of the Traveller community who want to engage in nomadism.

The provision, management and maintenance of Traveller accommodation has long been one of the most challenging functional and legal responsibilities for local government. Most Travellers now wish to settle or live in urban/ town settlements. Nearby residents will often strenuously object to any new proposals for Traveller accommodation and exert pressure on elected members during the Part VIII process (development by a local authority) to prevent same. This has impeded the delivery of local accommodation programmes that have been adopted by the elected members.

7.10 ESTATE MANAGEMENT, ANTI-SOCIAL BEHAVIOUR, COMMUNITY SUSTAINMENT

The focus by both local authorities (and central government) for most of the 20th century was on the *construction* of housing, as the existing stock in the country was in such poor condition and people's living conditions (overcrowding, lack of services, etc.) had to be urgently

addressed. In addition, Ireland began to attract new foreign investment from the 1960s onwards, mainly in urban settings and workers needed accommodation convenient to these new centres of employment.

At that time policy makers and local authorities devoted scant attention to the *management* of social housing. This oversight by local authorities is linked, in part, to the introduction of the tenant purchase schemes in the 1930s in rural areas and in the 1960s in urban areas. As tenant purchase schemes accelerated, rental income to local authorities reduced and, in effect, the bulk of housing stock on some social housing estates became privately owned. The high rate of transfer to private ownership required very limited management capacity from council housing departments, whose responsibilities traditionally had not stretched beyond allocating new dwellings, maintaining houses and rent collection.

The end of large scale social house building from the late 1970s shifted the focus in housing management towards making the best use of existing stock, rather than increasing supply. Furthermore, increasing attention was focused to the 'difficult-to-let estates' where housing management problems had become concentrated (see discussion of the Surrender Grant and regeneration above).

The 1991 policy statement *A Plan for Social Housing* was the first occasion on which the Government formally raised concerns regarding the standard of local authority housing management. Subsequently, the Housing (Miscellaneous Provisions Act) 1992 introduced new provisions relevant to tenant participation. Firstly, it enabled local authorities to delegate some of their housing management functions to a 'designated body' which can be a tenants' association. Secondly, it required local authorities to develop a written statement of policy on housing management.

In 2007, a statement on housing policy, *Delivering Homes Sustaining Communities*, was published which recognised that the segregation of housing into less well-off local authority estates (from better-off private estates) creates social divisions and that housing policies in the past had contributed to this. Social housing estates usually have a higher proportion of low-income families, often have disadvantaged schools and worse educational outcomes, thus hampering the life-chances of children. Mixed-tenure and mixed-income estates were advocated as a means of countering this division. Part V provisions allowed for a minimum of 20% social and affordable in private developments (see also Lesson on Planning).

The issue of managing social housing estates is complex and influenced by a range of factors. Various state and local policies can cause unintended stigmatization in local authority housing estates. The local authority rented sector has reduced in size since the 1960s, and because of declining availability of dwellings, this has resulted in mainly low-income and marginalized households receiving most new tenancies recent years, many of whom are dependant on social welfare payments. Many authorities seek to achieve a balance in letting new housing schemes, conscious that they are, in effect, creating a new community and that

there is a compelling need for good balance between those at work and those that are unemployed, for instance.

The Housing (Miscellaneous Provisions) Act, 2009 provided for the adoption of an Anti-Social Behaviour Strategy for the prevention and reduction of anti-social behaviour in local authority housing stock. Local authorities and the Gardaí have different powers to address anti-social behaviour. Common issues identified in problematic estates include the supply and consumption of hard drugs, the increasing number of young people drawn into criminality and anti-social behaviour, and the lack of adequate policing resources to deal with the serious problems in the area. In many cases, anti-social behaviour reflects more complex issues. Addressing these issues requires a local coordinated response among providers of social services (housing, schools, social welfare etc), law enforcement, and working with community groups and residents' organisations.

The Housing (Miscellaneous Provisions Act) 2014 set out provisions on evictions and other possible sanctions that local authorities could employ to address anti-social behaviour. However a high burden of proof is placed on local authorities to demonstrate that a tenant has caused significant or persistent detrimental effects on the quality of life of those in the area. Consideration will also be given as to whether an eviction might be seen as the most proportionate response to the alleged behaviour.

7.11 NATIONAL HOUSING POLICY STATEMENTS

7.11.1 Previous Housing Policy Frameworks

National policy on housing has evolved over time and is regularly the subject of both political discussions and the adoption by government of formal housing policy frameworks. The Government published the *Housing Policy Framework - Building Sustainable Communities* in 2005 followed by a policy statement, *Delivering Homes, Sustaining Communities* in 2007. In 2007-2008 the financial crisis led to a dramatic reduction in the supply of housing, both public and private. With the return to economic growth in the years afterwards, in 2016 the Government launched *Rebuilding Ireland: Action Plan for Housing and Homelessness*. This policy framework had five main pillars:

- address homelessness
- accelerate social housing
- build more homes
- improve the rental sector and
- utilise existing housing.

The plan involved an increase in new homes for the growing population and economy and with that increased social housing need. It suggested the need for a step change in the

delivery of housing in terms of both scale and speed. *Rebuilding Ireland* illustrated the persistent under supply in the Irish housing market, acknowledging that the provision of housing is influenced by "complex interactions in terms of land supply, development finance, market viability, industry capacity, various regulatory systems and above all the needs of house-buyers and tenants" (Department of Housing, 2016, p. 10). Increased Exchequer funding and financing from the Housing Finance Agency (HFA) was provided to local authorities and AHBs to increase delivery.

7.11.2 Housing for All

In 2021, the Government announced a revised housing policy framework known as *Housing for All*. The *Housing for All* framework also highlighted the lack of supply in both the private housing market and social housing sectors, severe affordability problems arising with average income households unable to access accommodation, high levels of homelessness, high construction costs, the need to address vacant housing stock, and environmental concerns.

The plan committed to increased capital funding for social housing, affordable housing, and through cost rental, as well as initiatives designed to stimulate supply through the private sector. A number of initiatives addressed above are identified in the plan (such as a local authority led Affordable Purchase Scheme, the First Home Scheme).

KEY CONCEPTS

- Housing Authorities
- Housing Strategy
- Housing Need and Demand Assessment
- Social Housing Needs
- Summary of Social Housing Assessments
- Record of Qualified Households / Housing Waiting List
- Housing Allocation Scheme / Scheme of Letting Priorities
- Choice-Based Letting
- Differential Rents Scheme
- Homelessness
- Approved Housing Body (AHB)
- Housing Agency
- Housing Finance Agency (HFA)
- Land Development Agency (LDA)
- Residential Tenancies Board (RTB)
- Approved Housing Bodies Regulatory Authority (AHBRA)
- Irish Council for Social Housing
- Rent Pressure Zones

- Standards for Rented Accommodation
- Anti-Social Behaviour
- Affordable Housing
- Cost Rental Housing
- Housing Assistance Payment (HAP)
- Rent Supplement (RS)
- Rental Accommodation Scheme (RAS)
- First Home Scheme
- Local Authority Affordable Purchase Scheme
- Tenant Purchase
- Local Authority Home Loan
- Housing Adaptation Grant for People with a Disability / Disabled Persons Grant
- Mobility Aids Grant Scheme
- Housing Aid for Older People Grant
- Housing First

STUDENT ACTIVITIES

1. What are the different factors that can influence the housing environment (including both supply of housing and demand for housing) in Ireland?

2. Having listed different factors in 1 above, consider which of these factors the local authority could potentially influence, and how.

3. Consult the most recent Housing Strategy and Housing Need and Demand Assessment for your area. What do these documents tell you about the challenges facing the housing service into the future?

4. Consult the allocation scheme for your local authority, and identify whether your local authority operates a points system or not. Are the categorisations and criteria used to allocate housing clear and reasonable in your view?

5. What are the different ways in which local authorities assist in the promotion of home ownership?

6. Should housing provision be transferred from local authorities to specialised national agencies which have appropriate expertise? What would be the pros and cons of such a move?

7. Examine the achievements of your local authority in respect of housing performance indicators by reviewing the latest NOAC report on performance indicators. How do these results compare with other similar local authorities?